

THEREFORE, IT IS HEREBY ORDERED:

1. ☐ The Petition is **DENIED**. (Doc Code: OEXD)
2. ☐ The Petition is **GRANTED**. The Court further **ORDERS**: (Doc Code: OEXG)
- a. Pursuant to KRS 431.076(3)(b), any felony charge(s) originating in District Court not resulting in an indictment or an information is/are hereby **DISMISSED**.
- b. The above-listed **charge(s) is/are EXPUNGED from the court records**. Upon entry of this order, the proceedings shall be deemed never to have occurred; the Court shall reply to any inquiry that no record exists; and Defendant shall not have to disclose the fact of the record or any matter relating to it on an application for employment, credit, or other purpose.
- c. **With the exception of any records in the custody of the Department for Community Based Services**, the Kentucky State Police and other following agencies with custody of records relating to the arrest, charge or other matters arising out of the arrest or charge, shall expunge the record, including but not limited to; arrest records, fingerprints, photographs, index references, or other documentary or electronic data, **and shall certify to the Court on this form** within sixty (60) days of the entry of this order that the required expunging action has been completed:

_____, 2_____
Date Judge

AGENCY CERTIFICATION

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2_____. Agency Records Custodian: _____

Distribution: Original - Court File

Copies: Defendant/Attorney; Kentucky State Police, 1266 Louisville Road, Frankfort, KY 40601; Named Agencies

Circuit Clerk: Refer to Clerk's Manual for instructions on filing this certification.

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